

TRADE PRACTICES ACT 1974
UNDERTAKING TO THE AUSTRALIAN COMPETITION AND CONSUMER
COMMISSION PURSUANT TO SECTION 87B
BY
BARLOWORLD COATINGS (AUST) PTY LIMITED
AND
BARLOWORLD INTERNATIONAL S.L.U

BACKGROUND

- 1 Barloworld is a wholly owned subsidiary of Barloworld Limited and operates an architectural and decorative paints manufacturing and retailing business in Australia using brands including Taubmans, Bristol and White Knight brands **(Barloworld A&D Business)**.
- 2 The Barloworld A&D Business has the third largest percentage share of the A&D Market.
- 3 Wattyl operates, amongst other things, an architectural and decorative paints and industrial paints manufacturing and retailing business in Australia, using brands including Solagard, Estapol, Wattyl i.d, Pascol, Solver, Granosite, Aspects and Killrust **(Wattyl A&D and Industrial Business)**.
- 4 The Wattyl A&D Business has the second largest percentage share of the A&D Market.
- 5 On 29 March 2006, Barloworld International S.L.U (acting as the general partner of Barloworld Coatings LP (LP 00000480)) made an offer to shareholders in Wattyl to acquire from them all of the fully paid ordinary shares in Wattyl Limited **(Takeover Offer)**.
- 6 If the Takeover Offer is successful and Barloworld International S.L.U obtains control of Wattyl it is the intention of Barloworld International S.L.U to operate both the Barloworld A&D Business and the Wattyl A&D Business in the A&D Market **(Merger)**.
- 7 The Merger will result in Barloworld having the largest percentage share of the A&D Market and will result in the A&D market being dominated by two firms, Barloworld and Orica, which company markets, amongst others, the Dulux brand of paints.
- 8 In its Statement of Issues dated 23 March 2006 **(Statement of Issues)**, the Commission expressed a preliminary view that the Merger is likely to

contravene section 50 of the *Trade Practices Act 1974* in that the Merger would be likely to lead to reduced competition and increased prices because:

- (a) the dominant A&D Market participants (Wattyl, Barloworld and Orica) are both manufacturers and retailers of A&D Paint and such integration by firms with such large market shares acts as a barrier to entry and expansion by competitors in the A&D Market;
- (b) consumer awareness of the dominant A&D Market participants' A&D paint brands is such that new entry to the supply of A&D paints in Australia on a scale that would constrain the Merged Business to act competitively appears unlikely to occur within a two year period;
- (c) manufacturers of industrial and heavy duty coatings are unlikely to represent a credible competitive threat to the Merged Business in relation to the supply of A&D paints;
- (d) entry and competition at the margins by niche suppliers of A&D Paint is unlikely to provide an effective competitive constraint on the remaining dominant A&D Market participants;
- (e) trade customers' must be in a position to supply consumers the most recognised brands of paint; and
- (f) retailers of A&D Paint and the remaining dominant A&D Market participants would have common incentives that would increase barriers to entry and expansion.

9 The Barloworld Parties do not accept that the Merger will, or is likely to, result in a substantial lessening of competition in any market.-

10 Without admission, the Barloworld Parties have offered this Undertaking to the Commission with the intention that the Undertaking will address the Commission's competition concerns. Specifically, the Barloworld Parties are of the view that the Bristol Sale, the Distribution Agreement and the Supply Agreement will provide a new entrant or an existing participant in the A&D Market with the opportunity to overcome the barriers to entry and expansion identified by the Commission in its Statement of Issues by offering for sale:

- (a) both A&D Paint manufacturing and retail assets; and
- (b) the Bristol brand which is a strong and well recognised brand in Australia with a history in the A&D Market established over 65 years.

11 The Undertaking is intended to facilitate the establishment of a participant in the A&D Market that would effectively constrain the Merged Business to act competitively on a national basis across the range of A&D Paint.

12 The Barloworld Parties have proffered this Undertaking to the Commission pursuant to section 87B of the Act.

DEFINITIONS

- 13 **Act** means the *Trade Practices Act 1974* (Cth).
- 14 **Additional Bristol Stores** means the stores listed in Schedule 5 to this Undertaking.
- 15 **Auditor** has the meaning given to that word in paragraph 80 of this Undertaking.
- 16 **A&D Market** means the market for architectural and decorative paint in Australia.
- 17 **A&D Paint** means paint used for architectural and decorative purposes including interior wall, ceiling, door and window paints, exterior wall, door and window paints, timber oils, undercoats, paving, roof and fence paints and texture coatings.
- 18 **Approved Agent** has the meaning referred to in paragraph 74 of this Undertaking.
- 19 **Approved Purchaser** means the entity or entities with which the Barloworld Parties or any one of them enters into an agreement or agreements to implement the Bristol Sale and who is approved in advance in writing by the Commission (such approval not to be unreasonably withheld and will be given in good faith) having regard to the need to promote vigorous and effective competition in the A&D Market, including consideration of the following factors:
- (a) the adequacy of the Proposed Purchaser's financial resources to effect the purchase of the assets comprising the Bristol Sale; and
 - (b) the likelihood of the Proposed Purchaser effectively constraining the Merged Business to act competitively in the A&D Market.
- 20 **Barloworld** means Barloworld Coatings (Aust) Pty Limited ACN 075 273 595.
- 21 **Barloworld A&D Business** means the architectural and decorative paints manufacturing business operated by Barloworld in Australia.
- 22 **Barloworld Limited** means Barloworld Limited, incorporated in the Republic of South Africa under the provisions of the Companies Act, 1973 (South Africa), as amended.
- 23 **Barloworld Parties** means Barloworld Coatings (Aust) Pty Limited and Barloworld International S.L.U.
- 24 **Bristol Agreements** means the Licence, Management and Distribution Agreements between Barloworld Coatings (Aust) Pty Limited and the Bristol Banner Group and/or its members in respect of the 35 Bristol Banner Group stores identified by the Barloworld Parties and listed in **Schedule 1**.

- 25 **Bristol Assets** means the Manufacturing Facility (or any Toll Manufacturing Agreement involving manufacture of A&D Paint at the Manufacturing Facility), Bristol Stores, Bristol Agreements, Bristol Trade Marks, Bristol Business Names, Bristol Domain Name, Bristol Intellectual Property and the perpetual right to use the Bristol Copyrights and Bristol Recipes in Australia.
- 26 **Bristol Business** means the A&D paint business conducted in Australia under the Bristol Trade Marks including the Bristol Assets.
- 27 **Bristol Business Names** means the business names listed in **Schedule 2**.
- 28 **Bristol Copyrights** means the copyrights relating to the Bristol Business.
- 29 **Bristol Domain Name** means www.bristol.com.au.
- 30 **Bristol Employees** means such employees of Barloworld Coatings (Aust) Pty Limited:
- (a) who are employed exclusively in the manufacture, warehousing, sale and marketing of the Bristol brand;
 - (b) who work at the Bristol Stores as at the date of this Undertaking; and/or
 - (c) who are employed on a non-exclusive basis in the sales and marketing of the Bristol brand; and
 - (d) who are identified by the Barloworld Parties and accepted by the Commission as being necessary for the ongoing conduct of the Bristol Business.
- 31 **Bristol Intellectual Property** means the business names, copyrights, patents, trade names, designs, and similar industrial, commercial and intellectual property excluding formulae and recipes but including know how) relating to the Bristol brand in Australia (other than the Bristol Copyrights, Bristol Recipes, Bristol Trade Marks, Bristol Business Names and Bristol Domain Name).
- 32 **Bristol Recipes** means recipes and formulae used in the manufacture of products sold under the Bristol brand in Australia.
- 33 **Bristol Sale** means the transfer or grant of the following items to the Approved Purchaser:
- (a) transfer of the Bristol Trade Marks, Bristol Business Names, Bristol Domain Name and Bristol Intellectual Property;
 - (b) grant of an exclusive perpetual royalty free licence to use the Bristol Copyrights in Australia;
 - (c) grant of a non-exclusive perpetual royalty free licence to use the Bristol Recipes in Australia;

- (d) transfer of the rights to the Bristol Stores and associated assets and, if required by the Purchaser, transfer of the rights to the Additional Bristol Stores and associated assets;
- (e) transfer of the rights to the Bristol Agreements;
- (f) transfer of the Manufacturing Facility or the entry into the Toll Manufacturing Agreement (the election of which shall be at the discretion of the Approved Purchaser);
- (g) transfer of the Bristol Employees (but only where such employees have consented to such transfer); and
- (h) the execution of the Distribution Agreement and Supply Agreement, in each case as contemplated by this Undertaking.

34 **Bristol Stores** means 40 of the Merged Business' stores identified by the Barloworld Parties and listed in **Schedule 3** (and if required by the Approved Purchaser, the Additional Stores), having regard to the need to provide national coverage for the Bristol brand and to support the Bristol trade customer base existing as at the date of this Undertaking.

35 **Bristol Trade Marks** means the trade marks registered in Australia and listed in **Schedule 4**.

36 **Commission** means the Australian Competition and Consumer Commission.

37 **Commission Approval** means the approval to be given in advance and in writing by the Commission of the terms of any agreement which approval will not be unreasonably withheld and will be given in good faith having regard to the reasonable commercial interests of Barloworld and the Approved Purchaser.

38 **Distribution Agreement** means the agreement to be entered into between Barloworld and the Approved Purchaser referred to in paragraph 58 of this Undertaking.

39 **Manufacturing Facility** means the Bristol manufacturing plant, warehouse, offices, improvements, machinery and associated assets located at Glen Waverley in Victoria.

40 **Merged Business** means the Barloworld A&D Business and the Wattyl A&D and Industrial Business operated by Barloworld International S.L.U upon it obtaining control of Wattyl Limited.

41 **Merger** means the operation of both the Barloworld A&D Business and the Wattyl A&D Business by Barloworld upon Barloworld International S.L.U obtaining control of Wattyl Limited.

42 **Merger Date** means the date upon which Barloworld International S.L.U obtains control of Wattyl Limited.

43 **Orica** means Orica Australia Pty Limited ACN 004 117 828.

- 44 **Proposed Agent** has the meaning referred to in paragraph 71 of this Undertaking.
- 45 **Proposed Purchasers** means the parties identified to the Commission by the Barloworld parties pursuant to paragraph 67 of this Undertaking.
- 46 **Statement of Issues** means the Statement of Issues issued by the Commission on 23 March 2006.
- 47 **Supply Agreement** means the agreement to be entered into between Barloworld and the Approved Purchaser referred to in paragraph 59 of this Undertaking.
- 48 **Takeover Offer** means the offer for all of the fully paid ordinary shares in Wattyl Limited made on 29 March 2006 by Barloworld International S.L.U (acting as the general partner of Barloworld Coatings LP (LP 00000480)).
- 49 **Toll Manufacturing Agreement** means the agreement to be entered into between Barloworld and the Approved Purchaser referred to in paragraph 57 of this Undertaking.
- 50 **Wattyl** means Wattyl Limited ABN 46 008 412 173.
- 51 **Wattyl A&D and Industrial Business** means the architectural and decorative paints and industrial paints manufacturing business operated by Wattyl in Australia upon successful completion of the Takeover Offer.

COMMENCEMENT OF UNDERTAKINGS

- 52 This Undertaking comes into effect when:
- (a) the Undertaking is executed by the Barloworld Parties; and
 - (b) the Undertaking is executed and accepted by the Commission.

UNDERTAKINGS

Acquisition of Wattyl

- 53 The Barloworld parties will not proceed with the Merger until this Undertaking is accepted by the Commission.

Divestment of the Bristol Assets

- 54 The Barloworld Parties will not sell, transfer or otherwise dispose of the Bristol Assets otherwise than to an Approved Purchaser in accordance with this Undertaking and will not, without the prior written consent of the Commission, remove or make any material adverse change to such assets.

- 55 The Barloworld Parties must divest the Bristol Assets and must use all reasonable endeavours to do so in accordance with this Undertaking within 6 months of the Merger Date and otherwise in accordance with this Undertaking.

Implementation of the Bristol Sale

- 56 In accordance with its obligations to divest the Bristol Assets the Barloworld Parties will do all things within their power or control to enter into an agreement or agreements with the Approved Purchaser within 6 months of the Merger Date pursuant to which the Barloworld Parties or any one of them will agree to implement the Bristol Sale upon reasonable commercial terms, such terms to be subject to Commission Approval.

Toll Manufacturing Agreement

- 57 In the event that the Approved Purchaser elects as part of the Bristol Sale not to purchase the Manufacturing Facility, and if required by the Approved Purchaser, the Barloworld Parties will do all things within their power or control to enter into an agreement with the Approved Purchaser on reasonable commercial terms (such terms to be subject to Commission Approval) pursuant to which Barloworld will agree to manufacture such A&D Paint as the Approved Purchaser shall require for a period of up to 5 years.

Distribution Agreement

- 58 The Barloworld Parties will, on reasonable commercial terms, offer to, and if required to will, receive on consignment and make available for sale the Approved Purchaser's A&D Paint products in retail outlets owned or controlled by the Merged Business for a period of 2 years.

Supply Agreement

- 59 If required by the Approved Purchaser, the Barloworld Parties will do all things in their power or control to enter into a Supply Agreement with the Approved Purchaser, upon reasonable commercial terms in the A&D Market (such terms to be subject to Commission Approval) for a period of 2 years.
- 60 Pursuant to the Supply Agreement, the Barloworld Parties will supply on a consignment basis to the Approved Purchaser those Stock Keeping Units (**SKUs**) manufactured by or on behalf of the Barloworld Parties that were sold in stores branded with the Bristol Trade Marks as at the Merger Date (other than Bristol A&D branded paint), which are listed in **Schedule 6**.

Bristol Employees

- 61 To facilitate the acceptance by the Commission of the Bristol Employees the Barloworld Parties will provide the Commission with:
- (a) a list of all employees of Barloworld who, as at the date of this Undertaking, are employed exclusively in the manufacture,

warehousing, sale and marketing of the Bristol brand, which employees shall be made available to the Approved Purchaser in accordance with the terms of this Undertaking;

- (b) a list of all employees who, as at the date of this Undertaking, work at the Bristol Stores, which employees shall be made available to the Approved Purchaser in accordance with the terms of this Undertaking;
- (c) a list all employees of Barloworld who, as at the date of this Undertaking, are employed on a non-exclusive basis in the sales and marketing of the Bristol brand; and
- (d) a list identifying which of the Bristol employees referred to in sub paragraph (c) above have been identified by the Barloworld Parties as being necessary for the on going conduct of the Bristol Business and which employees have not been so identified and the reasons for such identification and non-identification as the case may be.

62 The Barloworld Parties agree that they will not enforce or rely upon any provision of the employment arrangement of a Bristol Employee, which requires that the employee not accept employment with a competitor of the Barloworld Parties, should that particular employee seek or be offered employment with the Approved Purchaser in respect of the Bristol Business.

63 The Barloworld Parties agree not to take any steps to attempt to prevent or dissuade Bristol Employees from seeking, accepting or continuing employment with the Approved Purchaser in respect of the Bristol Business.

64 Nothing in this Undertaking shall be construed as requiring any Bristol Employee to accept employment with the Approved Purchaser.

65 Subject to paragraph 63 of this Undertaking, nothing in this Undertaking shall be construed as preventing or limiting the right of the Barloworld Parties or any one of them to offer to or to re-employ any Bristol Employee should such employee's employment with the Approved Purchaser be subsequently terminated for whatever reason.

Maintenance of the Bristol Business

66 Until completion of the Bristol Sale in accordance with this Undertaking, the Barloworld Parties will take all reasonable steps within their power and control as are necessary to:

- (a) preserve the Bristol Business as an on-going viable business in the A&D Market;
- (b) maintain the standards of manufacture, distribution, promotion and sale of the Bristol products which are current as at the date of this Undertaking;

- (c) continue to manufacture using the Manufacturing Facility, distribute, promote and sell the range of Bristol products which are manufactured, distributed, promoted and sold as at the date of this Undertaking and, as far as is reasonably possible, in quantities no less than the quantities which are manufactured, distributed, promoted and sold as at the date of this Undertaking;
 - (d) ensure that the Bristol Employees and any other employees involved in the manufacture, distribution, promotion and sale of the Bristol products continue to be employed in the conduct the Bristol Business;
 - (e) ensure that the Manufacturing Facility is preserved in the same working order as it is at the date of this Undertaking;
 - (f) ensure that the Bristol Assets are preserved;
 - (g) maintain all current contracts and agreements in respect of the Bristol Business;
 - (h) maintain all levels of promotional, advertising, sales and technical assistance, marketing and merchandising support for the Bristol Business as are current at the date of this Undertaking;
 - (i) acquire and pay for sufficient and timely deliveries of all goods and services required by the Bristol Business;
 - (j) maintain all books and records relating to the Bristol Business; and
 - (k) maintain all information necessary to enable the divestiture of the Bristol Assets,
- in accordance with past practice of the Barloworld Parties.

COMMISSION APPROVAL OF BRISTOL SALE

- 67 To facilitate the Commission's approval of the Approved Purchaser the Barloworld Parties must provide the Commission (if it has not already done so), on a confidential basis, with:
- (a) an Information Brochure relating to the Bristol Sale which must contain a detailed description of Bristol Business, the proposed transaction and all land, premises, plant, equipment, inventory and other assets that comprise the Bristol Sale, together with confirmation that a copy of this Undertaking has been provided to the Proposed Purchasers together with details of the postal address for the general manager, Mergers and Asset Sales Branch of the Commission;
 - (b) a copy of a draft agreement or agreements for effecting the Bristol Sale in accordance with this Undertaking;

- (c) a list of all prospective purchasers who have expressed a serious interest in the Bristol Sale (**Proposed Purchasers**); and
- (d) a memorandum of understanding, if one is proposed to be entered into by a prospective purchaser and the Barloworld Parties.

68 The Commission will, within 7 days of the date of receipt of the documents referred to in paragraph 67 above, notify the Barloworld Parties in writing that it either:

- (a) approves one or more Proposed Purchasers and the terms of the draft agreement or agreements for effecting the Bristol Sale in accordance with this Undertaking ; or
- (b) does not approve any of the Proposed Purchasers, and where it does not approve a Proposed Purchaser and/or the terms of any draft agreement or agreements for effecting the Bristol Sale in accordance with this Undertaking, it must give reasons for such non approval.

69 In the event that the Commission does not approve a particular Proposed Purchaser, the Barloworld Parties shall be free to submit a further list containing the names of other Proposed Purchasers, in which case the provisions of paragraphs 67 and 68 of this Undertaking relating to Commission approval shall apply.

70 In the event that the Commission does not approve a particular draft agreement or agreements for effecting the Bristol Sale the Barloworld Parties shall be free to submit a further draft agreement or agreements for effecting the Bristol Sale, in which case the provisions of paragraphs 67 and 68 of this Undertaking relating to Commission approval shall apply.

71 In the event that no Approved Purchaser exists on a date 6 months after the Merger Date the Barloworld Parties will identify a sales agent for the Bristol Business (**Proposed Agent**).

72 The Proposed Agent must be a person who is independent of the Barloworld Parties.

73 The Barloworld Parties will advise the Commission in writing, within 5 business days of the Barloworld Parties identifying the Proposed Agent of the identity of the Proposed Agent together with such information that the Barloworld Parties consider the Commission reasonably requires to assess whether the Commission is prepared to consent to the Proposed Agent.

74 If, within 5 business days of receipt by the Commission of the information from the Barloworld Parties referred to in paragraph 73 above:

- (a) the Commission does not object to the Proposed Agent, the Barloworld Parties will appoint the proposed Agent as soon as practicable

thereafter (**Approved Agent**) and forward to the Commission a copy of the executed terms of appointment; or

- (b) the Commission does object to the Proposed Agent, the Barloworld Parties must either (at the Commission's election):
 - (i) identify within 10 days an alternative Proposed Agent for the Bristol Sale (whose appointment will be considered by the Commission in accordance with paragraphs 73 and 74); or
 - (ii) appoint a nominee of the president of the Institute of Chartered Accountants of Australia as the Proposed Agent and the Barloworld Parties must appoint him or her to carry out the functions of the Approved Agent.

75 Within 5 business days of the appointment of the Approved Agent, the Barloworld Parties must:

- (a) procure and/or grant the Approved Agent, by execution and provision of an unconditional and irrevocable power of attorney in favour of the Approved Agent, all necessary power and authority to divest, sell and transfer the Bristol Assets and to implement the Bristol Sale and, subject to subparagraph (c) below, to do so in the manner and on the terms considered appropriate by the Approved Agent, in its sole discretion, to ensure compliance with this Undertaking;
- (b) require that the Approved Agent use his or her best endeavours to implement the Bristol Sale:
 - (i) within 4 months from the date of the power of attorney granted by the Barloworld Parties pursuant to this Undertaking; and
 - (ii) at the most favourable price and terms reasonably available to the Approved Agent at the time, but subject to an absolute and unconditional obligation to implement the Bristol Sale at no minimum price; and
- (c) in the case of any Distribution Agreement and Supply Agreement to be entered into with a purchaser who is identified by the Approved Agent pursuant to this paragraph, the terms of such agreements shall be subject to Commission Approval.

76 The Barloworld Parties will provide the Approved Agent with:

- (a) all relevant information available to the Barloworld Parties; and
 - (b) all reasonable assistance,
- to enable the Approved Agent to divest, sell and transfer the Bristol Assets and implement the Bristol Sale.

- 77 The Barloworld Parties will indemnify (save for fraud, negligence, breach of contract or breach of duty) the Approved Agent in the course of carrying out his or her functions in accordance with the terms of his or her appointment.
- 78 The Commission agrees that a sale of the Bristol Assets in accordance with the provisions of paragraphs 67 to 77 inclusive of this Undertaking shall constitute compliance by the Barloworld Parties with the terms of this Undertaking.

OBLIGATION TO PROVIDE THE COMMISSION WITH INFORMATION

- 79 The Barloworld Parties shall provide the Commission with copies of any agreements with the Approved Purchaser and the Approved Agent referred to in this Undertaking, such documents to be treated as confidential by the Commission.

AUDIT

- 80 The Barloworld Parties will engage at their expense an auditor (**Auditor**) to provide to the Commission every 90 days from the date of this Undertaking until the Bristol Sale is implemented, a report on the Barloworld parties' compliance with their obligations under this Undertaking and any qualifications made by the Auditor in forming its view and any recommendations made by the Auditor to improve the integrity of the audit process.
- 81 The Barloworld Parties will promptly identify the proposed Auditor and provide the Commission with information in relation to the expertise of the Auditor and information in relation to the Auditor's independence of the Barloworld Parties. The Auditor must be approved by the Commission, which approval will not be unreasonably withheld.
- 82 The Barloworld Parties undertake to use their best endeavours to implement any recommendations of the Auditor as soon as reasonably practicable after the release of the relevant Auditor's report.
- 83 The Barloworld Parties will cooperate fully with the Auditor and will provide the Auditor with such information and assistance as is necessary to enable the Auditor to carry out his or her functions as set out in this Undertaking.
- 84 The Barloworld Parties will authorise the Auditor to engage any technical expertise as the Auditor reasonably requires to conduct the audits.

ACKNOWLEDGEMENT

85 The Barloworld Parties acknowledge that the Commission will make this Undertaking available for public inspection and that the Commission will from time to time publish and publicly refer to this Undertaking.

Date:

SIGNED for **BARLOWORLD COATINGS (AUST) PTY LIMITED**

_____	_____
Signature of Witness	Director

_____	_____
Name of Witness	Name of Director

SIGNED for **BARLOWORLD INTERNATIONAL S.L.U**

_____	_____
Signature of Witness	Director

_____	_____
Name of Witness	Name of Director

ACCEPTED by **THE AUSTRALIAN COMPETITION AND CONSUMER COMMISSION**

Chairman

Date:

Schedule 1
BRISTOL BANNER GROUP STORES

State	Suburb	Address
Victoria	Albury	427 Swift St 2640
	Bairnsdale	72 Dalmahoy St 3875
	Bendigo	113 Williamson St 3550
	Bundoora	493 Grimshaw St 3083
	Clifton Hill	378 Queens Pde 3068
	Doveton	Cnr Progress St & Princes Hwy 3177
	Eltham	1 Bridge St 3095
	Glenroy	151 – 153 Wheatsheaf Rd 3046
	Sunbury	3/104 Horne St 3429
	Werribee	169 Watton St 3030
Tasmania	Invermay	17 – 21 Invermay Rd 7248
Western Australia	Albany	58 Serpentine Rd 6330
	Balcatta	90 Erindale Rd 6021
	Bunbury	Lot 6 Sandridge Rd 6230
	Gosnells	2318 Albany Hwy 6110
Australian Capital Territory	Tuggeranong	Shop 13, 56 Athllon Dr 2900
New South Wales	Coffs Harbour	228B Harbour Dr 2450
	Eastwood	241 Hillview Lane 2122
	Erina	179 The Entrance Rd 2250
	Hornsby	Shop 3, 320 Pacific Hwy 2077
	Lismore	48 Keen St 4280
	Nowra	15 Haigh Ave 2541
	Oak Flats	1/143 Industrial Rd 2529
	Pambula	Shop 3 Highway Trade Arthur Kaine Dr 2549
	Port Macquarie	19 Central Rd 2444
	Taree	Cnr Mill Cl & Whitbread St 2430
	Thornton	2 Hartley Dr 2322
	Tweed Heads	8 Machinery Dr Tweed Heads South 2486
	Warners Bay	Unit 4, 274 Macquarie Rd 2282

State	Suburb	Address
	Wickham	Lot 3, 166 Hannell St 2293
	Windsor	Unit 6/31 Brabyn St, Macquarie Towers 2756
Queensland	Bundaberg	42 Bourbong St 4670
	Currimundi	784 Nicklin Wy 4551
	Mackay	7&8 Jeffcoat St 4740
	Mt. Isa	116 Camooweal St 4825

Schedule 2
BRISTOL BUSINESS NAMES

Business Name	Number	State
BRISTOL PAINT AND WALLPAPER	11892B	NT
BRISTOL PAINT AND WALLPAPER	F00018418	ACT
BRISTOL PAINT & DECORATOR CENTRE	BN09679017	WA
EASY LIVING	B1619981G	VIC
EASY LIVING	0124564Z	WA
EASY LIVING	BN98107355	NSW

Schedule 3

STORES PROPOSED TO BE DIVESTED

State	Suburb	Address
Victoria	Ashburton	Cnr High St & Welfare Pde 3147
	Bentleigh	280 Centre Rd 3204
	Brunswick	671 Sydney Rd 3056
	Doncaster	Cnr Doncaster Rd & Rose St 3108
	Frankston	Unit 1 72 – 76 Dandenong Rd West 3199
	Geelong Superstore	38-42 Mercer St 3220
	Hawthorn	824 Glenferrie Rd 3122
	Mitcham	527-529 Whitehorse Rd 3120
	Mooroolbark	Unit 1, 286 Maroondah Hwy 3138
	Mornington Paint Centre	Unit 1, 173-179 Mornington Tyabb Rd 3931
	Narre Warren	Unit 5, 36-44 Lauderdale Rd 3805
	Waverley Road (Glen Waverley)	651 Waverley Rd 3150
Western Australia	Joondalup	3/109 Winton Rd 6027
	Myaree	Units 1-3, 118 North Lake Rd 6154
South Australia	Morphett Vale	Unit 4, 279 Main South Rd 5162
	Para Hills West	Unit 7, 1445 Main North Rd 5096
Australian Capital Territory	Belconnen	76 Oatley Ct 2617
New South Wales	St Peters	Unit 5, 500 Princess Highway 2044
	Maitland East	Shop 3 Greenhills Homemaker Centre, 3 Mitchell Dr 2323
	Menai	Menai Central Cnr Carter, Menai & Old Illawarra Rds 2234
	Mona Vale	84 Darley St 2103
	Norwest Park, Bella Vista	Norwest Homemaker Collection, 2-10 Celebration Dr, 2153
	Penrith	126-128 Batt St 2750
	Narellan	Units 8 & 9, 6-8 Porrende St 2567
	Wagga Wagga	2 Blake St 2650
	Warrawong	87-89 King St 2502

State	Suburb	Address
	Wetherill Park	10 Elizabeth St 2164
	Wyong (Tuggerah)	Unit 2/90 Pacific Hwy 2259
Queensland	Burleigh Heads	3/34 Kortum Dr 4220
	Cairns	289 Mulgrave Rd 4870
	Capalaba Superstore	142 Redland Bay Rd 4157
	Chermside	731 Gympie Rd 4032
	Ipswich	Unit 3 160 Brisbane Rd Booval 4304
	Logan	Home & Leisure Centre 3810 Pacific Hwy Shailer Park 4128
	Maroochydore	36-39 Maud St 4558
	Mt Gravatt	1230 Logan Rd 4122
	Strathpine	Cnr Stanley St & Gympie Rd 4500
	Toowoomba	Cnr Hume & King St 4350
	Townsville Superstore	Unit 1/207 Dalrymple Rd Garbutt 4810
	Woolloongabba	114 Logan Rd 4102

Schedule 4
BRISTOL TRADE MARKS

Trademark/ Image	Class	App No.	Reg No.	Expiry	Goods/Services
BRISTOL	2	756273	756273	2/5/08	Paints, coatings, dyes, enamels, oils, pigments, primers, putty, resins, gums, shellac, stains, thinners, thickeners, undercoats, sealers, varnishes, wood preservatives and painting accessories
BRISTOL and devices 	2	775183	775183	8/10/08	Paints, enamels, varnishes, primers, lacquers, stains, pigments, dyes, driers, fillers, blacks, japans, preservative oils and finishes for wood, anti-corrosive preparations
BRISTOL and devices 	2	675167	675167	13/10/15	Paints, coatings, dyes, enamels, oils, pigments, primers, putty, resins, gums, shellac, stains, thinners, thickeners, undercoats, sealers, varnishes, wood preservatives and painting accessories
BRISTOL and devices 	35	775182	775182	8/10/08	Retail services in relation to paint and decorating products; the selection of decorating and painting materials
BRISTOL COLOUR PLUS	35	982367	982367	16/12/13	Retailing, wholesaling and distribution services; advertising; business management; business

Trademark/ Image	Class	App No.	Reg No.	Expiry	Goods/Services
					administration
BRISTOL COLOUR STUDIO	35	982335	982335	16/12/13	Retailing, wholesaling and distribution services; advertising; business management; business administration
BRISTOL PAINT & COLOUR	2, 35, 40	779374	779374	25/11/08	Class: 2 Paints, enamels, varnishes, primers, lacquers, stains, pigments, dyes, colourants, driers, fillers, blacks, japans, preservative oils and finishes for wood, anti-corrosive preparations Class: 35 Retail services in relation to paint and decorating products; the selection of decorating and painting materials Class: 40 Consulting and advisory services in relation to the protection of surfaces
BRISTOL PAINT - A BETTER HOME IS JUST AROUND THE CORNER	2, 35	772734	772734	10/09/08	Class: 2 Paints, enamels, varnishes, primers, lacquers, stains, pigments, dyes, driers, fillers, blacks, japans, preservative oils and finishes for wood, anti-corrosive preparations Class: 35 Retail services in relation to paint and decorating products; the selection of decorating and painting materials
EASY LIVING	2	283872	283872	11/12/09	All goods included in this class
NOUVEAU (stylised)	2	982118	982118	15/12/13	Paints, enamels, varnishes, primers, lacquers, pigments, dyes, colourants, driers, fillers, blacks, japans, preservative oils and finishes for wood, anti-corrosive preparations
TRADE EDGE	2	982480	982480	18/12/13	Paints, enamels, varnishes, primers, lacquers, pigments,

Trademark/ Image	Class	App No.	Reg No.	Expiry	Goods/Services
					dyes, colourants, driers, fillers, blacks, japans, preservative oils and finishes for wood, anti-corrosive preparations
WEATHERTOUGH	2	675225	675225	16/10/15	Goods in class 2 being paint, protective finishes and coatings, lacquers

Schedule 5
ADDITIONAL BRISTOL STORES

State	Suburb	Address
Tasmania	Moonah (Taubmans)	25 Chesterman St 7009
Western Australia	Bentley	1155 Albany Hwy 6102
	Morley	Unit 3 139 Russell St 6062
South Australia	Torrensville	Tenancy No 2 164 Henley Beach Rd 5031
New South Wales	Bondi Junction	2 Denison St 2022
	Forster	89 Boundary St 2428
	Liverpool	Units 3 & 4, 419 Macquarie St 2170
	Manly Vale	206-208 Condamine St 2093
Queensland	Acacia Ridge	1150 Beaudesert Rd 4110
	Darwin (NT) (Taubmans)	Lot 1554 Winnellie Rd, Winnellie 4820

Schedule 6
SUPPLY AGREEMENT SKUS